

Seema Devi Widow v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 April 2024 · 2024:AHC:72382-DB · WRIT - C No. - 13426 of 2024 · **Writ disposed; bill dispute to be decided under Clause 6.5 within three months.**

HEADNOTE

A writ raising a pending electricity-bill dispute is disposed of by directing the consumer to approach the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, for decision on merits preferably within three months of compliance.

FACTUAL SUMMARY

Seema Devi, a widow, filed Writ-C No. 13426 of 2024 in the Allahabad High Court against the State of Uttar Pradesh and others, including the distribution licensee, disputing an electricity bill. Counsel for the petitioner and for the licensee were heard. The Division Bench recorded that she was contesting the bill and that the dispute was already pending consideration at the time of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill dispute — alternate remedy

HOLDING

A writ petition raising a live electricity-bill dispute is disposed of by directing the consumer to approach the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005; that application is to be decided on its own merits as expeditiously as possible, preferably within three months from the date of compliance. ¶ 1-2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ raising a pending electricity-bill dispute is disposed of by directing the consumer to approach the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, for decision on merits preferably within three months of compliance. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILL

Writ disposed without examining the bill; Clause 6.5 authority to decide on merits. ¶ 1-2